

Question Bank

DIVORCE (TALAQ)

Husband

#	Question	Answer	Law Reference
1	How does a husband validly pronounce Talaq?	By pronouncement, oral or written, followed by mandatory written notice to the Chairman of the Union Council, with a copy to the wife.	MFLO 1961, s.7(1)
2	When does Talaq become effective?	Ordinarily on the expiry of ninety days from the day notice is delivered to the Chairman, unless revoked earlier, or immediately upon delivery, or at the end of pregnancy, if the wife is pregnant, whichever is later.	MFLO 1961, s.7(3)–(5)
3	What is the penalty for not sending the required notice?	Simple imprisonment of up to one year, or a fine of up to Rs. 5,000, or both.	MFLO 1961, s.7(2)
4	Can Talaq be revoked during the ninety-day period?	Yes, by reconciliation and communication of the revocation to the Chairman before expiry of the period, or by resumption of conjugal relations.	MFLO 1961, s.7(3); Islamic law of Talaq-e-Rajai
5	Is the husband liable to pay deferred or prompt dower and maintenance upon divorce?	Yes. Unpaid Haq Mehr and maintenance during Iddat remain payable and recoverable; Iddat maintenance is due for the prescribed waiting period.	MFLO 1961, s.9; the Qur’anic principle reflected in Family Court jurisprudence
6	Can Talaq pronounced through a message, letter, or in the husband’s absence still be legally	The pronouncement itself, however communicated, may be religiously effective, but its legal and administrative recognition — registration, certificate, eligibility to	MFLO 1961, s.7

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	effective once notice is sent?	remarry — still depends on compliance with the section 7 noticeand-90-day procedure.	

Wife

#	Question	Answer	Law Reference
1	Does the wife need to respond to the Talaq notice?	It is not mandatory, but she may appear before the Arbitration Council for reconciliation efforts and may raise objections or claims — maintenance, dower, custody — simultaneously.	MFLO 1961, s.7
2	Is maintenance payable to the wife during the Iddat period?	Yes. The husband must maintain her during the Iddat, approximately three menstrual cycles, or until delivery if she is pregnant.	MFLO 1961, s.9; Islamic law of Iddat
3	What if the husband does not send notice to the Union Council but has otherwise pronounced Talaq?	The Talaq's effectiveness for legal and administrative purposes — issuing a divorce certificate, remarriage — is tied to compliance with section 7; the wife can approach the Chairman or the Family Court to compel the process or seek a declaration.	MFLO 1961, s.7; Family Courts Act 1964
4	Can the wife obtain a divorce certificate after the ninety-day period?	Yes. Upon expiry of the notice period without revocation, the Union Council issues a certificate confirming that the Talaq took effect.	MFLO 1961, s.7(5); Local Government Rules
5	Does the wife's factual dispute over whether Talaq occurred at all survive years after a divorce certificate has been issued?	She may still bring a suit for declaration disputing the fact or validity of the Talaq, subject to the ordinary law of limitation for civil suits, though a validly issued Union Council certificate carries strong evidentiary weight.	Family Courts Act 1964, s.5 & Schedule; Limitation Act 1908, as applied

6	What is the effect if the wife claims she never received her copy of the Talaq notice?	Non-receipt by the wife does not by itself stop the ninety-day period from running once notice has been delivered to the Chairman, though it may be relevant evidence if the wife disputes having had an opportunity to seek	MFLO 1961, s.7(1); Family Courts Act 1964
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		reconciliation or protect her claims; she retains the right to raise this before the Arbitration Council or the Family Court.	

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1	What is the composition of the Arbitration Council?	The Chairman, or his nominee, together with a representative of each of the parties; if a party fails to nominate a representative, the Chairman may proceed.	MFLO 1961, s.7(4); MFLO Rules 1961
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Chairman, Union Council

#	Question	Answer	Law Reference
1	What must the Chairman do upon receiving a Talaq notice?	Within thirty days, constitute an Arbitration Council to attempt reconciliation between the parties.	MFLO 1961, s.7(4)
2	Can the Chairman refuse to receive a Talaq notice?	No. Receipt of notice is a statutory duty; refusal does not affect the husband's right to serve notice, which can also be sent by registered post, but the Chairman may be liable for dereliction of duty.	MFLO 1961, s.7(1)-(2); Local Government Act
3	What happens if the Chairman fails to constitute the Arbitration Council within the statutory period after receiving a Talaq notice?	The failure does not stop the ninety-day period from running or invalidate the eventual Talaq; it may, however, expose the Chairman to administrative or penal consequences for dereliction of duty, and the wife can still approach the Arbitration Council herself.	MFLO 1961, s.7(4)

Union Council Secretary

#	Question	Answer	Law Reference
1	What is the Secretary's role in the Talaq process?	Registering the notice, maintaining the file, issuing acknowledgment, assisting the Arbitration Council administratively, and later issuing the divorce certificate.	MFLO 1961, s.7; Local Government Rules

Arbitration Council

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2	What is the Arbitration Council's function?	To take all steps necessary to effect reconciliation between the parties within the notice period.	MFLO 1961, s.7(4)
3	Can the Arbitration Council prevent Talaq from taking effect?	It cannot block Talaq from taking effect after ninety days if reconciliation fails; its role is conciliatory, not adjudicatory.	MFLO 1961, s.7

Family Court Judge (Where a Dispute Arises)

#	Question	Answer	Law Reference
1	Can a Family Court decide disputes about whether Talaq was validly pronounced?	Yes, through a suit for declaration regarding the fact, validity, or effect of the Talaq, alongside ancillary claims such as maintenance, dower, and custody.	Family Courts Act 1964, s.5 & Schedule
2	What if the husband disputes having pronounced Talaq at all?	The Family Court records the evidence, oral and documentary, and decides the factual question of whether the Talaq occurred and its legal consequence.	Family Courts Act 1964, s.17; QSO 1984
3	Can a Family Court treat a wife's written statement in a Restitution of Conjugal Rights suit as itself constituting a claim for dissolution, without a separate plaint?	Yes. Under the amended Family Courts Act, a wife's written statement in an RCR suit may include a claim for dissolution of marriage, including khula, which is treated as a plaint, avoiding the need for a separate suit.	Family Courts Act 1964, s.10(1A)/(1-B), as amended

4	Does a Talaq pronounced abroad by a husband domiciled overseas still require notice to a Union Council for recognition in Pakistan?	Yes, for domestic legal and administrative recognition — a divorce certificate, NADRA record update, eligibility to remarry in Pakistan — the notice procedure under section 7 must still be complied with, typically through the Pakistani mission abroad or directly with the relevant Union Council; a foreign divorce decree may	MFLO 1961, s.7; general principles on recognition of foreign judgments as applied by Family Courts
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		otherwise need separate recognition proceedings before a Pakistani court.	

Advocate / Lawyer, Nikah Registrar, NADRA Officer (Secondary)

#	Question	Answer	Law Reference
1	Can a lawyer draft or serve the Talaq notice on the husband's behalf?	Yes. Notice can be delivered through counsel, provided it meets the statutory requirements of writing and delivery to the Chairman and the wife.	MFLO 1961, s.7(1)
2	How does the Nikah Registrar's record relate to the divorce process?	The original Nikahnama record helps verify that the marriage subsisted and its terms, including delegated Talaq clauses, relevant to the divorce.	MFLO 1961, s.5 & 8
3	When is a divorce updated in NADRA records?	After the Union Council issues the divorce certificate or confirmation following expiry of the ninety-day, or otherwise applicable, period.	NADRA Ordinance 2000; MFLO 1961, s.7